
Appeal Decision

Site visit made on 23 June 2026

by Chris Mayes CMLI

an Inspector appointed by the Secretary of State

Decision date: 03 September 2026

Appeal Ref: 6005976

Redlands, Main Road, Newcastle upon Tyne NE13 8BW

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Ladhar against the decision of Newcastle Upon Tyne City Council.
 - The application reference is 2025/1277/01/DET.
 - The appeal development is described as extension and alterations to rear elevation of existing main dwelling, extensions and alterations to form 3 storey ancillary annex, erection of residential garage block and associated hard and soft landscaping.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. Since the appeal was lodged, the National Planning Policy Framework (the Framework) has been updated. I have determined the appeal on the basis of the current Framework. The parties, through the evidence submitted with the appeal, have had the opportunity to address the planning merits of the proposal, including matters relating to development in the Green Belt. I am satisfied that the changes to the Framework do not alter the substance of the main issues in this appeal or prejudice either party.
3. The application form indicates that the development is complete. I was able to see the completed development during my site visit and have determined the appeal on that basis.
4. The Council amended the description of development during the determination of the application. As the appellant did not agree to those amendments, I have used the description contained within the application as submitted and validated, which is reflected in the heading of this decision. I have nevertheless assessed the development as built.
5. The Council requested that material relating to a separate Certificate of Lawfulness appeal, submitted as Appendix 2 to the appellant's rebuttal statement, should not be taken into account. I have had regard to that request. Nevertheless, my conclusions on the planning merits of this appeal do not depend upon the outcome of the separate Certificate of Lawfulness appeal and I have determined the appeal accordingly.
6. A signed and dated Unilateral Undertaking has been submitted during the appeal process. Among other matters, the obligation would restrict occupation of the annex building so that it could only be occupied ancillary to the main dwelling and not as a

separate planning unit. I have taken the Undertaking into account as a material consideration in my determination of the appeal.

Background and Main Issues

7. The appeal site lies within the Green Belt and contains a substantial detached dwelling, associated outbuildings and surrounding land. The appeal development comprises extensions to the existing dwelling, the erection of a detached annex building, the erection of a garage block, associated hard and soft landscaping works and the extension of domestic garden areas into adjoining land.
8. The site has a long-established residential use. Historical evidence indicates that a dwelling occupied the site from at least the mid-twentieth century until its destruction by fire. Planning permission was granted in 2003 for the erection of a replacement dwelling and associated garage. A further planning permission was granted in 2017 for extensions to the main dwelling and the erection of an ancillary annex building.
9. The parties disagree as to whether the 2017 permission was lawfully commenced. That matter is the subject of a separate appeal relating to a Certificate of Lawfulness. However, I have determined this appeal on the basis of the development before me. Even if I were to assume, in the appellant's favour, that the 2017 permission was lawfully implemented and remains capable of being relied upon as a fall-back position, the evidence demonstrates that the development as built materially departs from that approved scheme. Indeed, the appellant accepts that while elements of the development were undertaken pursuant to the 2017 permission, the development as completed is not wholly in accordance with that approval.
10. Taking the above matters into account, the main issues are:
 - whether the appeal development constitutes inappropriate development in the Green Belt having regard to the National Planning Policy Framework (the Framework) and relevant development plan policies;
 - the effect of the development on openness;
 - the effect of the appeal development on the character and appearance of the area;
 - the effect of the appeal development on ecology and biodiversity; and
 - whether the harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations so as to amount to the very special circumstances necessary to justify the development.

Reasons

Whether Inappropriate Development

11. The Framework provides that certain forms of development on grey belt land may not constitute inappropriate development in the Green Belt where the relevant criteria are satisfied.
12. The site comprises a long-established residential use and contains substantial existing built development. Having regard to the characteristics of the site and the

evidence before me, I am satisfied that it comprises grey belt land for the purposes of the Framework.

13. In such circumstances, policy GB7(1) g.ii of the Framework requires there to be an evidenced unmet need for the type of development proposed. The appellant refers to the needs of an expanding family, multi-generational living arrangements, cultural considerations, security concerns and mobility needs. I have no reason to doubt the genuineness of those circumstances. However, only limited evidence has been provided to demonstrate the specific accommodation requirements said to arise from mobility needs or why those requirements necessitate development of the scale now present on the site. Furthermore, prior to the construction of the development now before me, the site already provided substantial residential accommodation, and previous permissions had facilitated significant additional accommodation associated with its occupation. While family circumstances can carry weight, the evidence before me does not demonstrate an unmet need requiring development of the scale proposed.
14. Consequently, I am not satisfied that the development meets the requirements of policy GB7(1) g.ii of the Framework. As the criteria are cumulative, that conclusion is sufficient to mean that the development does not benefit from the grey belt provisions. It therefore falls to be considered against national and local Green Belt policy in the usual way.
15. For the development to be not inappropriate it would, in accordance with policy GB7(1) b of the Framework need to not result in a disproportionate increase in size compared to the original dwelling. Footnote 40 to the Framework defines the original building for these purposes as that first constructed after 1 July 1948. There is no dispute between the parties that a detached house and detached garage was erected pursuant to the 2003 planning permission, which provides the appropriate baseline against which the scale of the additions should be assessed.
16. The development comprises extensions to the main dwelling, a substantial annex building and a large garage structure. No detailed volumetric assessment has been provided either of the development or the house as originally built. Although the original dwelling is substantial, the evidence before me, together with my observations during my site visit, indicates that the development as built represents a disproportionate increase in size. Indeed, the annex alone is of a scale broadly comparable to that of the dwelling originally constructed in 2003. Although physically detached, the annex and garage would remain functionally and physically related to the main house and would operate as ancillary residential accommodation. In those circumstances, I consider it appropriate to treat it as an addition to the original dwelling for the purposes of Green Belt assessment.

Openness

17. The additions have significantly increased the amount of built form on the site where previously there was none. The development therefore causes substantial harm to the openness of the Green Belt in spatial terms.
18. In visual terms, I acknowledge that the site is heavily screened by existing vegetation and that public views of the development are extremely limited. Consequently, I find that the effect on openness in visual terms is very limited. However, openness is also a spatial concept. Notwithstanding the limited visibility

of the development, the substantial increase in the amount of built form on the site results in a significant reduction in openness in spatial terms.

19. For these reasons, notwithstanding the disputed change of use of woodland and paddock land, I conclude that the appeal development constitutes inappropriate development in the Green Belt. In addition to the definitional harm arising from inappropriateness, the appeal development results in substantial harm to the openness of the Green Belt, principally in spatial terms. In accordance with the Framework, I attach substantial weight to that harm. Consequently, the development conflicts with the Green Belt aims of the Framework and with Policy CS19 of the Core Strategy and Urban Core Plan for Gateshead and Newcastle upon Tyne 2010-2030 (March 2015) (CS), which seeks to protect the Green Belt, including by safeguarding the countryside from encroachment and checking unrestricted urban sprawl.

Character and Appearance

20. The site occupies a substantial plot and forms part of an area characterised by large, detached houses set within generous, landscaped grounds. Mature vegetation and woodland planting contribute significantly to the verdant character of the area and limit views of development from the surrounding countryside.
21. The annex building, extensions to the main house and garage block have been designed using materials, proportions and architectural detailing that are broadly consistent with the existing house. Consequently, the development reads as a coherent composition rather than an incongruous addition. Furthermore, the extensive landscaping and established vegetation substantially moderate the visual presence of the development. While the removal of sections of hedgerow and the extension of domestic curtilage have altered the historical extent of the residential plot, the site remains heavily landscaped and retains its distinctly verdant character.
22. Although the development has increased the amount of built form on the site, the buildings are arranged within a substantial plot and are experienced as part of a coherent group of structures associated with the main house. The spacing between buildings, mature landscaping and scale of the site mean that the development does not appear cramped, congested or overdeveloped. Consequently, while I have found that the development materially reduces openness through the cumulative increase in built form, that finding does not lead me to conclude that it causes harm to character and appearance. Openness and character are distinct planning concepts. In this case, the development has not resulted in a harmful change to the prevailing character of the area and does not appear visually intrusive in public views.
23. Taking these matters together, I conclude on this main issue that while the development has altered the extent and intensity of development on the site, it has not resulted in material harm to the character and appearance of the area. Consequently, I find no conflict with Policy CS15 of the CS or Policy DM20 of the Newcastle upon Tyne Development and Allocations Plan 2015-2030 (June 2020) (DAP). Furthermore, as I have assessed the appeal development as ancillary accommodation associated with the existing residential use rather than housing development, I do not find conflict with the housing-led spatial strategy objectives of Policy CS4 of the CS.

Ecology and Biodiversity

24. The appeal site includes woodland that forms part of a Site of Local Conservation Interest. The woodland is locally designated due to its mature and heritage trees and the habitat provided for a range of protected and priority species. Consequently, it is recognised as being of ecological value at both parish and district level and is relatively uncommon within the local area. It is also located within a Wildlife Enhancement Corridor. The appeal development has resulted in the removal of groundcover from the woodland area to provide garden space with associated landscaping and residential activity which has altered the character of previously undeveloped areas.
25. Consequently, although the tree canopy remains largely intact, the removal of understorey vegetation, ground flora, soils and deadwood has eroded important habitat features that support biodiversity, including but not limited to nesting, roosting and foraging opportunities for priority species. There also is potential for increased disturbance arising from domestic activity including lighting and its consequent effect on bat foraging corridors. Furthermore, a hedgerow has been removed and areas of grassland disturbed. The development has therefore resulted in ecological harm and a degree of domestication of land that formerly formed part of the woodland setting.
26. The appellant proposes compensation for the loss of habitat through the provision of a new area of woodland planting and the provision of bird, bat and hedgehog boxes. However, the Council raises concerns about the location of the woodland and its ability to provide appropriate compensatory woodland. Furthermore, it has concerns regarding the Biodiversity Net Gain (BNG) metric which demonstrates a 15.56% net gain. The baseline identified within the report is not agreed, and the Council states that initial assessments were undertaken outside of the accepted botanical assessment period and, as such, habitat conditions cannot be accepted with confidence. The woodland areas that the report identify as degraded have been assumed to be in 'moderate condition' despite the wider woodland achieving a 'good condition' score and no justification has been provided for these assumed conditions in the form of a botanical species list or species abundance.
27. Even if I were to accept that the proposed woodland planting provided adequate compensation for the harm caused to ecology, and enabled an appropriate level of BNG, there is no mechanism before me to ensure that it would be provided. The proposed planting area is not within the appeal site and there is no legal agreement before me that would secure its provision.
28. For the reasons given above, I have found that the development has resulted in ecological harm. Furthermore, in the absence of a mechanism to secure the proposed compensatory measures, it has not been demonstrated that the identified harm would be adequately mitigated or that biodiversity net gain would be achieved. Accordingly, it conflicts with Policies DM28 and DM29 of the DAP or Policy CS18 of the CS in this regard.

Other Considerations and Green Belt Balance

29. The development has been advanced as providing accommodation for an extended family through multi-generational living arrangements. I have no reason to doubt the appellant's desire to accommodate family members within the appeal site and I

accept that the annex would provide flexibility in that regard. I therefore attribute moderate weight to the family circumstances put forward.

30. I have also had regard to the appellant's references to mobility needs, cultural considerations, business requirements and security concerns. However, only limited evidence has been provided regarding the nature of the mobility needs relied upon or why those needs require development of the scale now present on the site. Similarly, while I acknowledge the concerns raised regarding security and family living arrangements, the evidence before me does not demonstrate that they necessitate development of the extent before me. Accordingly, I attribute limited weight to these matters.
31. The planning history of the site is a material consideration. In particular, permission was granted in 2017 for extensions to the main house and the erection of an annex building. However, even if I were to accept the appellant's case that the permission remains extant, the development before me materially exceeds that previously authorised. It would therefore be preferable to the scheme before me now and its weight as a fallback position is limited, albeit I accept that additional accommodation associated with the residential use of the site has previously been found acceptable in principle. I afford this matter moderate weight.
32. I have also taken into account the submitted Unilateral Undertaking which would restrict occupation of the annex so that it remains ancillary to the main house and may not be occupied as a separate planning unit. I attach weight to that obligation. However, the principal Green Belt harm identified in this case arises from the scale and physical presence of the development. Consequently, the restriction on occupation would not materially reduce the identified harm in terms of inappropriateness and openness and therefore attracts only limited weight.
33. Finally, I recognise that the development makes use of an existing residential site. I attribute limited weight to that matter. I have also found no material harm in relation to character and appearance. That finding does not weigh against the development, but neither does it amount to a positive consideration of significant weight.
34. Taking these matters together, I attach moderate weight to the family living arrangements proposed and to the planning history of the site. I attach limited weight to the submitted Unilateral Undertaking, the use of an existing residential site, the matters relating to mobility needs and the concerns regarding security.
35. The Framework establishes that substantial weight should be given to any harm to the Green Belt and that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances. In addition, the harm caused to ecology and biodiversity attracts moderate weight. In totality, therefore, I find that the other considerations in this case do not clearly outweigh the harm identified. Consequently, the very special circumstances necessary to justify the development do not exist.

Development Plan Conclusion

36. The development conflicts with Green Belt policies and those relating to ecology and biodiversity and is therefore in conflict with the development plan when read as a whole. While I have identified a number of material considerations in favour of the development, including the provision of accommodation to support multi-

generational living arrangements and the planning history of the site, they do not indicate that a decision should be made other than in accordance with the development plan.

37. I have had due regard to the Public Sector Equality Duty (PSED) set out under s149 of the Equality Act 2010, but the harm caused by the development outweighs its benefits in terms of eliminating discrimination against persons with the protected characteristics of religion, age and/or disability, advancing equality of opportunity for those persons and fostering good relations between them and others. Hence, I conclude that it is proportionate and necessary to dismiss the appeal.

Conclusion

38. I therefore conclude that the appeal should be dismissed.

Chris Mayes

INSPECTOR